

Court No. - 39

Case :- WRIT - C No. - 600 of 2021

Petitioner :- Khan Raza

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shailesh Kumar Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no.1 & 3 and Shri N.K.Tiwari, learned counsel appearing on behalf of respondent no.2.

The instant petition has been filed seeking following reliefs :

"(a) issue a writ, order or direction in the nature of writ of certiorari to quash the impugned Recovery Citation/Notice S.N. DG64561082700 R.C.PRAPTRA-36 dated 15.10.20 issued by respondent no.3 (Annexure no.8 to this writ petition),

(b) issue a writ, order or direction in the nature of writ of mandamus commanding the respondent's authority did not be made any coercive action against petitioner."

Learned counsel for the petitioner submits that he is ready and willing to deposit the total amount of Rs.3,13,417/- in easy installments.

Shri N.K.Tiwari learned counsel for respondent no.2 submits that the petitioner's grievance for payment of dues in easy installments can be considered and decided under Clause 6.14 of the Electricity Supply Code, 2005, hence some reasonable time may be allowed by this Court.

Considering the aforesaid submissions, without going into the merits of the case, this writ petition is **disposed of** with a direction to the petitioner to move a representation ventilating all his grievances before respondent no. 2 within three weeks from today along with a copy of this order who shall consider and decide the same strictly in accordance with law preferably within a period of four weeks.

On deposit of first installment as may be fixed by respondent no.2, electricity connection of the petitioner shall be restored, subject to the condition that further installments shall be paid by him within the prescribed period as may be fixed. In case of default in payment, the petitioner shall not be entitled to the benefit of this order.

Order Date :- 1.2.2021/VR/